

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

COMPLAINANT’S MOTION TO EXTEND EXPERT DEADLINES

Complainant Bed Bath & Beyond Inc. (the “Complainant”) by and through undersigned counsel, hereby files this Motion to Extend Expert Deadlines (the “Motion”), and in support thereof states that good cause for the Motion exists, as follows:

1. On June 8, 2023, the Presiding Officer entered a Scheduling Order (“Schedule”) with the following deadlines relevant to this Motion:

- August 23, 2023 Report of Complainant’s experts, if any, to be provided to Respondent.
- September 1, 2023 Respondent to identify rebuttal expert witnesses, if any.
- September 22, 2023 Respondent to provide Complainant with rebuttal experts’ reports, if any.

2. On August 4, 2023, the parties to this proceeding filed a Joint Motion to Extend Briefing and Other Deadlines (the “Joint Motion”), seeking to extend the above deadlines and others. (*See* Doc. No. 22.)

3. As of the date of filing this Motion, the Presiding Officer has not ruled on the Joint Motion.

4. Pursuant to the current Schedule, the deadline for Complainant to serve expert reports is August 23, 2023. If the Presiding Officer grants the currently pending Joint Motion, that deadline would instead be November 21, 2023.

5. Complainant files this separate motion now, in advance of the current August 23, 2023 deadline, to request respectfully that the Presiding Officer stay the expert deadlines in the current Schedule pending a ruling on the parties' Joint Motion or, at a minimum, order that, for the reasons stated herein and for good cause shown, Complainant shall not be required to provide expert reports to Respondents on August 23, 2023.¹

6. Although the parties have negotiated and submitted to the Presiding Officer a Stipulated Preservation Plan for Complainant (*see* Doc. No. 18), a Consent Motion for Entry of Protective Order (*see* Doc. No. 19), which the Presiding Officer previously granted (*see* Doc. No. 20), and an ESI Protocol containing search terms and parameters for document collection and review in response to the parties' respective discovery requests (*see* Doc. No. 23), as of the date of filing this Motion, ***the parties have not yet exchanged any documents or ESI in response to each other's discovery requests.*** Consistent with the parties' note regarding outstanding disagreements in the ESI Protocol (*see* Doc. No. 23 at 16 n.1), the parties also have briefed a separate Motion for Entry of a Protective Order filed by Respondents relating to the scope of discovery sought by Complainant in this proceeding, which is pending decision by the Presiding Officer (*see* Doc. Nos. 25 & 26).

7. The relief Complainant requests in this Motion, which is entirely consistent with the relief previously requested by the parties in the Joint Motion, is necessary to avoid undue prejudice to Complainant in at least four ways.

¹ Complainant notes that a ruling by the Presiding Officer granting the Joint Motion would render this Motion moot, and accordingly renews its request that the Presiding Officer grant the Joint Motion.

8. **First**, given the current procedural posture of the parties and the state of discovery in this proceeding, requiring Complainant to comply with the current August 23, 2023 deadline to provide expert reports to Respondents would require Complainant's expert (whose identity was timely disclosed to Respondents by the original deadline set forth in the Schedule) to form premature opinions and make preliminary conclusions *without the benefit of any discovery in the case*. See *Oklahoma ex rel. Edmondson v. Tyson Foods, Inc.*, No. 05-CV-329-GKF-SAJ, 2008 WL 3403510, at *1 (N.D. Okla. Aug. 8, 2008) (granting a motion to extend expert deadlines because, in part, production was still ongoing and necessary to prepare a report). Complainant's expert obviously cannot analyze, much less prepare a report on, Respondents' conduct, regulations, practices, and policies with respect to space allocation, associated profit considerations, surcharges, premium pricing, or detention and demurrage charges without access to any of Respondents' documents and ESI to be produced in discovery in this proceeding (or, for that matter, the testimony of any of Respondents' employees or corporate representatives).

9. **Second**, the substantial documents, data, and information forthcoming in discovery in this proceeding would need to be addressed by the expert, and in light of the scope of discovery outlined in the parties' joint filings discussed above, the current deadline for Complainant's expert report puts the cart before the horse. Complainant would be prejudiced by having to provide a premature partial report followed by a supplemental report, potentially exposing Complainant's expert to undue attacks for a necessarily incomplete and preliminary report required by the current Schedule. Complainant should not be forced to "show its hand" regarding its expert's initial opinions despite not yet having received any documents or ESI from Respondents in this proceeding.

10. **Third**, beyond the substantive problems that requiring a premature initial report and necessitating a supplemental report would entail, the expert deadlines in the current Schedule would also require unnecessary expenditures of time, money, and resources in preparing and finalizing two separate reports.

11. **Fourth**, failing to extend the current Schedule's expert deadlines would potentially prejudice Respondents, as well, because it likely would require Respondents to prepare and provide two separate rebuttal reports.

12. The relief requested in this Motion was already the subject of discussion and agreement by the parties in preparing their previously filed Joint Motion, which jointly requested an extension of time for Complainant to serve its expert report until at least November 21, 2023.

13. Counsel for Complainant emailed counsel for Respondents on August 21, 2023, proposing, in the absence of a ruling on the parties' Joint Motion, an agreement between the parties that pending such a ruling, the parties would agree to suspend the deadlines regarding sharing expert reports (or the Respondents identifying rebuttal experts) and further agree that neither side would later argue that such reports were late or somehow prejudiced either side's position in the proceeding, and further proposing, as an alternative, filing a short (joint) letter with the Court today requesting a ruling on the parties' Joint Motion or, more limitedly, a stay of deadlines regarding expert witnesses and reports pending the Presiding Officer's ruling on the Joint Motion. As of the time of filing this motion, counsel for Complainant has not received a response from Respondents' counsel. Due to the nature of this Motion and the impending deadline at issue, and especially given that the relief this Motion seeks is entirely consistent with the parties' previously filed Joint Motion, Complainant did not wish to delay further in filing this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. prays that the parties' Joint Motion to Extend Briefing and Other Deadlines be granted or, in the alternative, that the Presiding Officer grant a stay of the expert deadlines in the current Schedule pending a ruling on the parties' Joint Motion or otherwise order that Complainant shall not be required to provide expert reports to Respondents on August 23, 2023.

Dated: August 22, 2023

Respectfully submitted,

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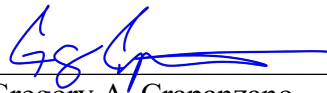
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of this document to their counsel of record listed below:

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Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: August 22, 2023



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For Complainant Bed Bath & Beyond Inc.